

## 25STCV34359 25STCV34359

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-07-02

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C414%2C07%2F02%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C414%2C07%2F02%2F2026)

Source SHA-256: 297a0c099aa78209cbf03af6b5c19cfdd57a7e23accc97537f7ac0db439b0bf1

Case Number: 25STCV34359 Hearing Date: July 2, 2026 Dept: 414

25STCV34359

Wilson v. Ross Stores, Inc.

July 2,

2026 at 8:45 a.m.

[TENTATIVE] ORDER PLAINTIFF'S

MOTION GRANTING RELIEF FROM WAIVER OF TRIAL BY JURY [CODE CIV.PROC. § 631(e)

Plaintiff

failed to post jury fees prior to the Case Management Conference as required by

statute, resulting in a waiver of jury trial. (Code

Civ. Proc., § 631; Min. Ord. 4.9.26.)

Plaintiff seeks relief from the waiver.

A party

waives jury trial by failing to timely pay the jury fee. (Code

Civ. Proc., § 631 (f) (5).)

The court has discretion to allow a jury

trial although there may have been a waiver. (Code Civ. Proc., § 631 (g).) Relief from waiver may be granted where there

has been no prejudice to the other party or to the court from an inadvertent

waiver. (Wharton v. Superior Court (1991)

231 Cal.App.3d 100, 104.)

Because the right to jury trial is fundamental, doubts are resolved in favor of

allowing a jury trial. (Tesoro del Valle Master Homeowners

Assn. v. Griffin (2011) 200 Cal.App.4th 619, 638.)

The

court has considered Defendant's objection, which is overruled. Accordingly, the motion is GRANTED. Plaintiff posted jury fees on May 5, 2026.